

26STCV01168 26STCV01168

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Case Number: 26STCV01168 Hearing Date: September 22, 2026 Dept: 510

No.

9 - Kai Kyungdong Lee v. KTL Mart, Inc., et al.

Defendants' Demurrer to Plaintiff's

Complaint

Defendants

KTL Mart, Inc. and Krissy Lee demur to Plaintiff Kai Kyungdong Lee's complaint for breach of contract.

Request

for Judicial Notice

Defendants request the Court take

judicial notice of five court records from a separate superior court case. However, there are no documents attached to the notice. The Court exercises its discretion to take judicial notice of the court records. The Court can access them through the court system. Defendants are cautioned to comply with all court rules in the future.

Defendants'

request for judicial notice is granted under Evidence Code section 452(d).

Defendant

KTL Mart

Plaintiff argues Defendant KTL Mart,

Inc. cannot bring this demurrer because default has been entered against it. The Court agrees. Because Defendant KTL Mart, Inc. is in default, it is not entitled to file this demurrer. "The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered." (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385.) As such, the demurrer as brought by Defendant KTL Mart, Inc. is hereby stricken. The Court will only consider the demurrer as brought by Defendant Krissy Lee, who is not in default.

Uncertainty

Defendant

Lee contends the complaint is uncertain because it does not provide specific facts about Plaintiff's performance of contract obligations. "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) " "Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." ' ' (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, alterations omitted.) The complaint must sufficiently apprise defendants of the claims against them. (Ibid.) Here, this failure to provide additional details does not prevent Defendant from answering the complaint.

Sufficiency of Allegations

To

state a cause of action for breach of contract, Plaintiff must allege "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Defendant

Lee challenges the second element: "plaintiff's performance or excuse for nonperformance." She argues that Plaintiff did not comply with the requirement to timely file a dismissal with prejudice. Specifically, the Settlement

Agreement, attached as Exhibit A to Plaintiff's complaint, provides:

The remaining balance of Sixty
Thousand Dollars (\$60,000.00) shall become payable only upon Plaintiff's
compliance with all conditions precedent outlined herein, including filing a
dismissal with prejudice as stipulated in Section 2 Failure by
Plaintiff to comply with these conditions precedent or any breach of
confidentiality or non-disparagement obligations shall nullify the requirement
for Defendants to make any additional payments

[¶¶]

[Section 2] Dismissal. Within seven
(7) days after the receipt of the Initial Payment, Plaintiff shall file a
Request for Dismissal with prejudice and with the court retaining jurisdiction
pursuant to the Code of Civil Procedure § 664.6.

(Compl.,
Ex. A, Settlement Agreement, at p. 2.)

Defendant
points the Court to judicially noticeable court records showing that Plaintiff
filed a request for dismissal on May 5, 2025, that was "not entered" by the
clerk. (See RJN, Item 1.) Defendant contends that this court record, together
with the complaint's allegation that "[o]n or about April 22, 2025, Defendants
paid the initial installment of \$40,000" (Compl., ¶ 19) compels the
conclusion that Plaintiff was required to file the request for dismissal by
April 29 and failed to do so. Therefore, Defendant argues, Plaintiff cannot
sufficiently plead "plaintiff's performance or excuse for nonperformance."

The
Court rejects Defendant's argument. The face of the complaint, combined with
the judicially noticed documents, does not reveal the date Plaintiff received
the \$40,000 initial payment, which would start the clock to file any dismissal.
General demurrers can be used only to challenge defects that appear on the face
of the pleading or from matters outside the pleading that are judicially
noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc.
§§ 430.30, 430.70; Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The
complaint's allegations only confirm when payment was made, not when payment
was received. (See Compl., ¶ 19.) Given the material before the Court, it is

possible that Plaintiff was not in "receipt" of the initial payment until well after April 22, and timely filed the request for dismissal on May 5. Given the allegations in the complaint and judicially noticed documents, Plaintiff states a viable claim for breach of contract at the pleading stage.

Disposition

Defendant

KTL Mart, Inc.'s demurrer is hereby stricken.

Defendant Krissy Lee's demurrer as to Plaintiff's complaint is overruled. Defendant Lee should file any responsive pleading within 21 days.